135 Proposition 135: Prohibit Surgery on Minors in Response to Perception of Sex or Gender

Placed on the ballot by citizen initiative • Passes with a majority vote

Ballot Title

Shall there be a change to the Colorado Revised Statutes modifying existing law by prohibiting surgery on a minor for the purpose of altering the minor's biological sex characteristics, and, in connection therewith, prohibiting any health-care professional or other person from knowingly performing, prescribing, administering, or providing any surgery to a minor for the purpose of altering the minor's biological sex characteristics and prohibiting the use of state or federal funds, Medicaid reimbursement, or insurance coverage to pay for this type of surgery?

What Your Vote Means

YES A "yes" vote on Proposition 135 prohibits surgeries on minors that would alter their biological sex characteristics as a treatment in response to a minor's perception of sex or gender, and prohibits the use of government funds or health insurance to pay for the surgeries.

NO A "no" vote on Proposition 135 maintains Colorado law, which protects access to surgery altering minors' biological sex characteristics and allows public and private health insurance programs to pay for these surgeries.

136 Proposition 136: Income Tax Rate Limit

Placed on the ballot by citizen initiative • Passes with a majority vote

Ballot Title

Shall there be a change to the Colorado Revised Statutes capping the state income tax rate at 4.4% of federal taxable income for individuals and corporations?

What Your Vote Means

YES A "yes" vote on Proposition 136 establishes the current state income tax rate of 4.4 percent as the maximum rate.

NO A "no" vote on Proposition 136 keeps the current state income tax rate of 4.4 percent without establishing a new limit in statute.

136 Proposition 136: Income Tax Rate Limit

Placed on the ballot by citizen initiative • Passes with a majority vote

Proposition 136 proposes amending the Colorado statutes to:

- set a 4.4 percent limit on the state income tax rate for individual and corporate taxpayers.

What Your Vote Means

YES A "yes" vote on Proposition 136 establishes the current state income tax rate of 4.4 percent as the maximum rate.

NO A "no" vote on Proposition 136 keeps the current state income tax rate of 4.4 percent without establishing a new limit in statute.

Summary and Analysis of Proposition 136

What does Proposition 136 do?

The measure limits the state income tax rate for individuals and corporations to the current rate of 4.4 percent of taxable income beginning on January 1, 2027.

Does Proposition 136 change the current income tax rate?

No, the measure does not alter the current 4.4 percent state income tax rate. It creates a state law setting this rate as the maximum beginning on January 1, 2027.

Does Proposition 136 prevent any future changes to the state income tax rate?

No, Proposition 136 will not change the process for adjusting Colorado's income tax rate. The state legislature or a citizen initiative may reduce the state income tax rate. The Colorado Constitution already requires that any tax rate increases be approved by voters.

What happens if Proposition 136 and Amendment 87 both pass?

Amendment 87 creates a graduated income tax, where higher tax rates are applied to higher incomes and lower tax rates are applied to lower incomes earned by a household or business. If both Amendment 87 and Proposition 136 are approved by voters, the proposed rate for incomes over $500,000 in Amendment 87 would be higher than the 4.4 percent limit in Proposition 136. Generally, when parts of voter-approved measures conflict, the policy outcome is determined by the measure that

receives more votes. However, if both measures are approved by voters, the exact outcome is unclear. The state legislature or a court will determine how to resolve any conflicts.

Argument For Proposition 136

1) Proposition 136 reinforces voter support for maintaining the current state income tax rate. The current rate, overwhelmingly approved by voters in 2022, is fair and keeps Colorado's tax rate among the lowest in the country.

Argument Against Proposition 136

1) This initiative is designed to put Amendment 87 into legal jeopardy, causing confusion and a potentially costly legal battle to resolve. After the 2026 election, Proposition 136 has no effect, since raising tax rates already requires voter approval and any future approval would override this measure.

> Information about the organizations supporting and opposing this measure is available on the Colorado Secretary of State's website:
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> www.coloradosos.gov/pubs/elections/Initiatives/ballot/contacts/2026.html

Fiscal Impact of Proposition 136

The measure limits the state income tax rate to no higher than the current rate of 4.4 percent. This results in no change to state or local government revenue or spending. For this reason, the measure has no fiscal impact.



professional entity comprised of such health-care providers as permitted by the laws of this state.
(c) "Minor" means an individual who is under eighteen years of age.
(3) **Prohibition on medical interventions on minors.** A health-care professional or other person shall not knowingly perform, prescribe, administer, or provide any surgery to a minor for the purpose of altering biological sex characteristics.
(4) No state or federal funds, medicaid reimbursements, or insurance coverage may be used to pay for any prohibited medical interventions described in subsection (3) of this section.
(5) **Severability.** If any section of this section is found unconstitutional or invalid, the remaining sections shall remain in effect.
SECTION 3. Effective date - applicability. This measure shall become effective on January 1, 2027, and apply to violations occurring on or after the effective date.

Proposition 136
Income Tax Rate Limit

The ballot title below is a summary drafted by the professional staff of the offices of the secretary of state, the attorney general, and the legal staff for the general assembly for ballot purposes only. The ballot title will not appear in the Colorado Revised Statutes. The text of the measure that will appear in the Colorado Revised Statutes below was drafted by the proponents of the initiative. The initiated measure is included on the ballot as a proposed change to current law because the proponents gathered the required amount of petition signatures.

Ballot Title:
Shall there be a change to the Colorado Revised Statutes capping the state income tax rate at 4.4% of federal taxable income for individuals and corporations?

Text of Measure:
Be it Enacted by the People of the State of Colorado:
SECTION 1. In Colorado Revised Statutes, **add** 39-22-102.5 as follows:
39-22-102.5. Maximum Tax Rate.
Starting January 1, 2027, neither the individual income tax rate nor the corporate income tax rate may exceed 4.4% of a taxpayer's federal taxable income.
SECTION 2. Effective date.
This measure is effective upon proclamation of the Governor and applicable to the tax year beginning January 1, 2027 and all future tax years thereafter.

Proposition 137
Direct Sporting Goods Sales Tax Revenue for Conservation

The ballot title below is a summary drafted by the professional staff of the offices of the secretary of state, the attorney general, and the legal staff for the general assembly for ballot purposes only. The ballot title will not appear in the Colorado Revised Statutes. The text of the measure that will appear in the Colorado Revised Statutes below was drafted by the proponents of the initiative. The initiated measure is included on the ballot as a proposed change to current law because the proponents gathered the required amount of petition signatures.

Ballot Title:
Shall there be a change to the Colorado Revised Statutes creating new law to increase water and land conservation funding without raising taxes, and, in connection therewith, through a voter-approved revenue change, allowing the state to keep and spend a portion of revenue from the state sales tax on sporting goods and equipment to conserve and protect Colorado's water, land, and forests, prevent wildfires, support outdoor recreation training and activities, and reduce revenue spent on these conservation purposes if necessary to preserve funding for certain tax credits?

Text of Measure:
Be it Enacted by the People of the State of Colorado:
SECTION 1. In Colorado Revised Statutes, **add** 24-77-110 as follows:
24-77-110. Declaration of the people of Colorado - retention of exempt sales tax revenue - conserve and protect Colorado's water, land, and forests fund - determination and distribution of wildfire and conservation revenue. (1) The voters of the state of Colorado find and declare that:
(a) Without raising taxes, more conservation funding is needed to reduce the risk of wildfire and conserve